

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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CHIQUITA JONES, as Mother and Natural
Guardian of KEVIN BANKS,
JEFFREY BANKS and LOGAN BANKS, and
CHIQUITA JONES, individually,
Plaintiffs

VERIFIED COMPLAINT
INDEX # 152784/2017

-against-

THE CITY OF NEW YORK and P.O JOSEPH
CAPPUCCIO,

Defendants
-----x

Plaintiff, complaining of the defendants herein, by his attorney,
Daniel Tessler, respectfully sets forth and alleges upon information and
belief:

THE PARTIES

1. That at all times hereinafter mentioned, defendant CITY OF NEW YORK was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That at all times hereinafter mentioned, infant plaintiffs Kevin Banks, Jeffrey Banks and Logan Banks were and still are minor children under the age of eighteen years and no guardian of the property of said infants has been appointed and this action is brought on behalf of said infants by Chiquita Jones, mother and natural guardian of said infants, with whom said infants reside.
3. That at all times hereinafter mentioned, defendant Joseph Cappuccio is and was an officer of the New York City Police Department, shield Number 18407.

NOTICE OF CLAIM

4. That on or about the twentieth day of June, 2016, a verified Notice of

Claim, setting forth, among other things, the name and post office address of the claimants; the name and address of their attorney, the date when, the place where and the manner in which the claim herein arose, and the items of damage or injuries, was duly served upon the defendant, THE CITY OF NEW YORK, by delivering a copy thereof in duplicate personally to the Office of the Comptroller of the City of New York. The aforementioned Notice of Claim was served within ninety (90) days after said occurrence.

5. That more than thirty (30) days have elapsed since the service of said Notice of Claim and that adjustment or payment has been neglected and/or refused by defendants.
6. That this action is instituted less than one year and ninety (90) days after the claim upon which it is based arose.

STATEMENT OF FACTS

7. That on or about the twenty-sixth day of March 2016, at approximately 4:00 p.m., at or near 819 FDR Drive, County, City and State of New York, defendant Joseph Cappuccio, an officer, shield number 18407, of the Police Department of defendant City of New York, together with other officers of said Police Department, whose full identity is yet to be determined, without a warrant to search or arrest, and absent exigent circumstances and/or probable cause entered by force the apartment of plaintiff Chiquita Jones, 819 FDR Drive, City, County and State of New York, and then and there said officers of the Police Department of the City of New York encountered the minor children of plaintiff Chiquita Jones, namely infant plaintiffs Kevin Banks, thirteen years of age, Jeffrey banks, eleven years of age, and Logan banks, six years of age.
8. That infant plaintiff Jeffrey Banks then telephoned his mother, plaintiff Chiquita Jones, who at the time was at her place of employment in Brooklyn, and reported to her that police personnel through use of force had entered their apartment, namely apartment 13B, 819 FDR Drive, New York City.

9. Plaintiff Chiquita Jones thereupon returned to her apartment at 819 FDR Drive, #13 B, New York City.
10. That upon her arrival at her residence, 819 FDR Drive, #13B, New York City, defendant Joseph Colluccio and other officers of the Police Department of the defendant City of New York, without probable cause or justification, placed plaintiff Chiquita Jones under arrest, restrained her in manacles, and transported her to the Housing Bureau PSA4 police station, located at 130 Avenue C, County, City and State of New York, where she was booked on the following charges: NYPL §§ 260.10(1), 260.10(2), 205.30, 221.05.
11. The Police Department of the defendant City of New York detained plaintiff Chiquita Jones at the Housing Bureau PSA4 police station, 130 Avenue C, New York City, for approximately six hours.
12. Plaintiff Chiquita Jones was thereafter transported by the Police Department of the City of New York to Central Booking, and thence to the Criminal Court of the City of New York, County of New York, 100 Centre Street, City, County and State of New York, where she where she was detained until her arraignment and release upon her own recognizance on March 27, 2016, at approximately 6:00 p.m.
13. That on March 26, 2016, at approximately 4:00 p.m., at 819 FDR Drive, apartment 13B, New York City, defendant Joseph Cappuccio and other officers of the Police Department of defendant City of New York forcibly and without justifiable cause seized the cellular telephone of the infant plaintiff Jeffrey Banks, causing thereby physical injury and pain to said minor claimant, and necessitating medical care at the emergency room at Beth Israel Hospital, located at or near First Avenue and Sixteenth Street, New York City.
14. That on March 26, 2016, The Administration for Children Services, an agency of defendant City of New York, by its servants, agents and employees, removed the minor children of plaintiff Chiquita Jones, namely the infant plaintiffs Kevin Banks, Jeffrey Banks and Logan Banks,

from the custody of their mother and natural guardian plaintiff Chiquita Banks, and detained and sequestered the infant plaintiffs Kevin Banks, Jeffrey Banks and Logan Banks against their will and against the will of their mother and natural guardian plaintiff Chiquita Jones at a housing facility or facilities, the precise location or locations of which is/are yet to be determined.

15. On or about March 28, 2016, custody of said minor children was restored to their mother and natural guardian, Chiquita Jones.

16. That on the second day of August 2016, the Criminal Court of the City of New York, County of New York, dismissed nolle prosequi all criminal charges against plaintiff Chiquita Jones.

AS AND FOR A FIRST CAUSE OF ACTION

17. Plaintiffs repeat, reiterate and re-allege each and every allegation contained hereinabove with the same force and effect as if fully set forth herein at length.

18. That such criminal prosecution of plaintiff Chiquita Jones by defendants, their servants, agents and employees was instituted without probable cause, with malicious intent, and based upon perjured and or false testimony of an informant or informants that defendants, their servants, agents and employees knew or reasonably should have known was unreliable, untruthful, untrustworthy, and mentally incompetent and unstable.

19. By reason of the arrest and malicious prosecution, plaintiff Chiquita Jones was subjected to indignity, humiliation, loss of freedom, and emotional distress. Plaintiff's good name and his reputation in the community were injured and she was prevented from attending his usual business, all to her damage in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SECOND CAUSE OF ACTION

20. Plaintiffs repeat, reiterate and re-allege each and every

allegation contained hereinabove with the same force and effect as if fully set forth herein at length.

21. That the removal of the infant plaintiffs Kevin Banks, Jeffrey Banks and Kevin Banks from the custody of their mother and natural guardian plaintiff Chiquita Jones by defendants, their employees, servants and agents, and the sequestration and confinement of said infant plaintiffs in a facility or facilities owned, operated, controlled and/managed by the Administration for Children's Services of the defendant City of New York was wrongful, willful and malicious, and without right, warrant or a pretense of legal process, and deprived infant plaintiffs of their liberty for a period of approximately forty-eight hours.
22. By reason of the foregoing, the infant plaintiffs Jeffrey Banks, Kevin Banks and Logan Banks were deprived of their liberty and were made ill and were subjected to ridicule, scorn and derision by those knowing of their detention, all to their damage in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A THIRD CAUSE OF ACTION

23. Plaintiffs repeat, reiterate and re-allege each and every allegation contained hereinabove with the same force and effect as if fully set forth herein at length.
24. That the removal of the infant plaintiffs Kevin Banks, Jeffrey Banks and Keven Banks from the custody of their mother and natural guardian plaintiff Chiquita Jones and the sequestration of said infant plaintiffs in a facility or facilities owned, operated, controlled and/managed by the Administration for Children's Services of the defendant City of New York was without legal justification.
25. By reason of the foregoing, plaintiff Chiquita Jones was deprived of the comfort and companionship of her children, the infant plaintiffs Kevin Banks, Jeffrey Banks and Logan Banks, all to her damage in an

amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FOURTH CAUSE OF ACTION

26. Plaintiffs repeat, reiterate and re-allege each and every allegation contained hereinabove with the same force and effect as if fully set forth herein at length.
27. That the removal of the infant plaintiffs Kevin Banks, Jeffrey Banks and Keven Banks from the custody of their mother and natural guardian plaintiff Chiquita Jones and the sequestration of said infant plaintiffs in a facility or facilities owned, operated, controlled and/managed by the Administration for Children's Services of the defendant City of New York was without legal justification.
28. By reason of the foregoing, infant plaintiffs Kevin Banks, Jeffrey Banks and Logan Banks were deprived of the care, comfort and companionship of their mother, the plaintiff Chiquita Jones, all to their damage in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FIFTH CAUSE OF ACTION

29. Plaintiffs repeat, reiterate and re-allege each and every allegation contained hereinabove with the same force and effect as if fully set forth herein at length.
30. Defendants' violent acts committed against infant plaintiff Kevin Banks amounted to a series of harmful and offensive contacts to the infant plaintiff Jeffrey Bank's person, all of which were done intentionally by defendants, without infant plaintiff Jeffrey Banks' consent.
31. As a direct and proximate result of the aforementioned batteries, infant plaintiff Jeffrey Banks has sustained in the past, and will sustain in the future, physical injury, pain and suffering, serious

psychological and emotional distress, mental anguish, embarrassment and humiliation.

32. As a direct and proximate result of the aforementioned batteries, infant plaintiff Jeffrey Banks has incurred medical expenses and other economic damages, and continues to be in physical pain and will now be obligated to expend sums of money for medical care and attention in an effort to cure himself of his injuries and to alleviate his pain and suffering, emotional distress, mental anguish, embarrassment and humiliation. He was unable, and continues to be unable for some time to come, to pursue his usual activities, all due to his physical, psychological and emotional injuries and damage, all to his damage in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SIXTH CAUSE OF ACTION

33. Plaintiffs repeat, reiterate and re-allege each and every allegation contained hereinabove with the same force and effect as if fully set forth herein at length.
34. Defendants' violent acts committed against infant plaintiff Kevin Banks amounted to a series of events creating a reasonable apprehension in infant plaintiff Kevin Banks of offensive contact to infant plaintiff's person, all of which were done intentionally by defendants without infant plaintiff's consent.
35. As a direct and proximate result of the aforementioned assaults, infant plaintiff has sustained in the past and will sustain in the future physical injury, pain and suffering, serious psychological and emotional distress, mental anguish, embarrassment and humiliation.
36. As a direct and proximate result of the aforementioned batteries, infant plaintiff Jeffrey Banks has incurred medical expenses and other economic damages, and continues to be in physical pain and will now be obligated to expend sums of money for medical care and attention in an

effort to cure himself of his injuries and to alleviate his pain and suffering, emotional distress, mental anguish, embarrassment and humiliation. He was unable, and continues to be unable for some time to come, to pursue his usual activities, all due to his physical, psychological and emotional injuries and damage, all to his damage in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SEVENTH CAUSE OF ACTION

37. Plaintiffs repeat, reiterate and re-allege each and every allegation contained hereinabove with the same force and effect as if fully set forth herein at length.
38. That by reason of the foregoing, plaintiff Chiquita Jones was deprived of her liberty for a period of approximately twenty-seven hours and was made ill and was subjected to ridicule, scorn and derision by those knowing of her detention, all to her damage in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A EIGHTH CAUSE OF ACTION

39. Plaintiffs repeat, reiterate and re-allege each and every allegation contained hereinabove with the same force and effect as if fully set forth herein at length.
40. The Federal Civil Rights Act, 42 U.S.C. Section 1983, provides a remedy for the violation of an individual's civil rights as guaranteed by the Constitution of the United States of America.
41. The actions of defendants, as more fully set forth at length above, constitute a gross violation of the plaintiffs' civil rights under the United States Constitution and 42 U.S.C. Section 1983, as a result of which plaintiffs are entitled to damages in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A NINTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if fully set forth herein at length.
43. The defendant City of New York had a duty to exercise reasonable care in the employment, training and supervision of its employees, including but not limited to its police personnel, and to ascertain whether they were competent to carry on the activities and duties entrusted and assigned to them without danger of harm to others.
44. Upon information and belief, the defendant CITY OF NEW YORK had knowledge that the police personnel participating in the herein described arrest, detention and prosecution of Plaintiff Chiquita Jones were incompetent, of vicious propensities, of bad disposition, and of bad temperament, judgment and discretion, or had knowledge of facts which would put a reasonable person on notice concerning the aforesaid employees' incompetence and characteristics, and the defendant CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT failed to correct or remove said employee or employees.
45. The defendant CITY OF NEW YORK was negligent, careless, and reckless in the hiring, training and supervision of the said police personnel.
46. As a result of all the acts of the defendant CITY OF NEW YORK, its servants, agents and employees, the plaintiff was greatly humiliated and subjected to mental distress, suffered loss of freedom and was greatly injured in reputation, and is entitled to damages in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR AN TENTH CAUSE OF ACTION

47. Plaintiffs repeat, reiterate and re-allege each and every allegation contained hereinabove with the same force and effect as if fully set forth herein at length.

48. The defendant City of New York had a duty to exercise reasonable care in the employment, training and supervision of its employees, including but not limited to its Administration for Children's Services, and to ascertain whether they were competent to carry on the activities and duties entrusted and assigned to them without danger of harm to others.
49. Upon information and belief, the defendant CITY OF NEW YORK had knowledge that the Administration for Children's Services personnel participating in the herein described removal and sequestration of infant plaintiffs Kevin Banks, Jeffrey Banks and Logan Banks were incompetent, inadequately trained, of vicious propensities, of bad disposition, and of bad temperament, judgment and discretion, or had knowledge of facts which would put a reasonable person on notice concerning the aforesaid employees' incompetence and characteristics, and the defendant CITY OF NEW YORK and THE NEW YORK CITY ADMINISTRATION FOR CHILDREN'S SERVICES failed to correct or remove said employee or employees.
50. The defendant CITY OF NEW YORK was negligent, careless, and reckless in the hiring, training and supervision of the said Administration for Children's Services personnel.
51. As a result of all the acts of the defendant CITY OF NEW YORK, its servants, agents and employees, the plaintiffs were greatly humiliated and subjected to mental distress, suffered loss of freedom and were greatly injured in reputation, and is entitled to damages in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.
- AS AND FOR A ELEVENTH CAUSE OF ACTION
52. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if fully set forth herein at length.
53. The actions of the defendant as more fully set forth at length

above, constitute a gross violation of the plaintiffs' Constitutional rights under the Constitutions of the United States of America and the State of New York, as a result of which plaintiffs are entitled to damages as a result of which plaintiff is entitled to damages in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court.

WHEREFORE, plaintiff demands judgment against defendant in the first cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court; in the second cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court; in the third cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court; in the fourth cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court; in the fifth cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court; in the sixth cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court; in the seventh cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court; in the eighth cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court; in the ninth cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court; in the tenth cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which

would have jurisdiction and which warrants the jurisdiction of this; in the eleventh cause of action in an amount that exceeds the jurisdictional limit of all lower Courts which would have jurisdiction and which warrants the jurisdiction of this Court, together with the costs and disbursements of this action.

Dated: New York, NY

May 26, 2017

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DANIEL TESSLER
Attorney for Plaintiffs
277 Broadway
New York, NY 10007

VERIFICATION

State of New York: County of New York

ss.:

I, CHIQUITA JONES, being duly sworn, depose and say: I am the claimant herein; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.



CHIQUITA JONES

Sworn to before me this

.....*sixth*..... day of *June* 2017

DANIEL TESSLER
Notary Public, State of New York
No. 02TE6210877
Qualified in New York County
Commission Expires September 08, 2017